

AB 1755 strengthens the consumer protections of the lemon law statutes, provides equity and fairness for all parties to a lemon law dispute, and ensures timely access to justice for California consumers.

(Sen. Com. on Judiciary, Analysis of Assem. Bill No. 1755 (2023-2024 Reg. Sess.) as amended Aug. 26, 2024.) The purpose was to streamline and provide clarity.

Here, this appears to demonstrate an intent of the Legislature to require compliance with the pre-lawsuit notice requirement to maintain an action. Other similar pre-lawsuit notices have been required to be pled, despite nothing in the statutes specifically requiring it to be led. (See e.g., *Lafferty v. Wells Fargo Bank* (2013) 213 Cal.App.4th 545, 565 [CLRA notice sufficient pled under Civil Code § 1782].)

Plaintiff's opposition does not address this argument and mischaracterizes Defendant's motion. The failure to respond to a point is "equivalent to a concession." (*Sehulster Tunnels/Pre-Con v. Traylor Brothers, Inc.* (2003) 111 Cal.App.4th 1328, 1345, fn. 16.) However, Plaintiff attempts to offer proof of compliance through counsel's declaration. Like a demurrer, the Court may not consider extrinsic evidence when ruling on a motion to strike. (See, e.g., *Afuso v. United States Fid. & Guar. Co., Inc.* (1985) 169 Cal.App.3d 859, 852, disapproved on other grounds in *Moradi-Shalal v. Fireman's Funds Ins. Cos.* (1988) 46 Cal.3d 287 [error for court to consider contents of release which was not party of any court record].)

4.

CASE #	CASE NAME	HEARING NAME
CVSW2310968	MORTIMER VS KAFARAH	MOTION TO TAX COSTS

Tentative Ruling: Motion granted in part and denied in part.

Background - This is a premises liability action by Plaintiff Brenda Mortimer against Defendant Mohammad Kafarah dba Tobacco King. On December 28, 2023, Plaintiff filed her complaint alleging two causes of action for 1) negligence, 2) premises liability based on the allegation that the premises were in a dangerous condition existed consisting of a "poorly placed and maintained framed poster on the floor of the subject premises." On March 2, 2026, a jury trial commenced concerning this matter which concluded on March 19, 2026, with a net jury verdict in favor of Plaintiff in the amount of \$135,465. On April 7, 2026, the Court entered Judgment in favor of Plaintiff and against Defendant. On May 1, 2026, Plaintiff filed her Memorandum of Costs seeking \$41,102.48 in costs.

Defendant now moves to tax portions of Plaintiff's memorandum of costs. Specifically, Defendant moves to strike: Item 1.d filing fees of \$472.35; Item 1.e filing fees of \$219.25, Item 13 trial binders and demonstrative evidence of \$9,721.57; and Item 15 other of \$5,865.94. (Cal. Rules of Court, Rule 3.1700(b).) Defendant argues the challenged costs were not reasonable in amount nor were they reasonably necessary to the litigation.

Plaintiff opposes and argues the claimed costs are all reasonable and recoverable.

In reply, Defendant re-argues the points presented in his moving papers.

Standard - A “prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (C.C.P., § 1032(b).) A prevailing party “includes the party with a net monetary recovery, a defendant who is dismissed from the action, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides” (C.C.P., § 1032(a)(4).) In other words, where a party does not fall into one of the four express categories set forth in (C.C.P., § 1032(a)(4), the court is not required to award costs to the party “as a matter of right” and may exercise its discretion to award or deny costs. (*Lincoln v. Schurgin* (1995) 39 Cal.App.4th 100, 105.)

Items explicitly allowed as costs are set forth in C.C.P., § 1033.5(a). Items expressly disallowed as costs are set forth in section 1033.5, subdivision (b). Other costs may be allowed or denied in the court's discretion. (§ 1033.5, subd. (c)(4).) “Any award of costs shall be subject to the following: [¶] (1) Costs are allowable if incurred, whether or not paid. [¶] (2) Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation. [¶] (3) Allowable costs shall be reasonable in amount.” (§ 1033.5, subd. (c)(1)-(3).)

The losing party may dispute any or all of the items in the prevailing party's costs memorandum by a motion to strike or tax costs. (Cal. Rules of Ct., rule 3.1700(b).) A verified memorandum of costs constitutes prima facie evidence of the reasonable necessity of the costs claimed. Supporting documents must be submitted only if costs have been put in issue by a motion to tax costs. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1267.) If the items on their face appear to be proper charges, the burden is on the party seeking to tax costs to show they were not reasonable or necessary. (*Ladas v. Cal. State Auto. Ass'n* (1993) 19 Cal.App.4th 761, 774-776.) On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. (*Id.* at 774-776.) Determination of whether a cost is reasonable is a question of fact within the trial court's discretion. (*Id.* at 761.)

Merits - Here, there is no dispute that Plaintiff is the prevailing party and is entitled to recover her costs as a matter of right under C.C.P., § 1032(b). However, Defendant does challenge certain costs, discussed below:

Item No. 1. – Filing Fees -Filing and motion fees are expressly allowable costs under C.C.P. § 1033.5(a)(1). Plaintiff's costs include filing fees for various itemized filings totaling \$1,417.05. Defendant challenges \$472.35 in filing fees for motions in limine and \$219.25 in fees for lodging exhibits. As Defendant argues motions in limine nor lodging of exhibits are not subject to filing fees. Rather these appear to be charges for attorney service charges. “Neither subdivision (a) or (b) [of Code of Civil Procedure section 1033.5] states whether attorney service charges for court filings and deliveries or mediators' fees are allowable or not. Thus, these costs fall within the ‘discretionary category,’ subdivision (c)—that is, they are allowable if in the court's discretion they were ‘reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.’” (*Sanford v. Rasnick* (2016) 246 Cal.App.4th

1121, 1132.) Plaintiff presented DDS Legal invoices showing that the claimed fees were for delivery charges, and include charges to deliver the same documents to the same court twice and once to the wrong court address. Defendant also showed that Plaintiff's counsel was present at the court the date of deliveries thus showing the charges were convenience rather than reasonably necessary. **Motion granted to tax \$691.60 in filing fee costs.**

Item 13 – Models, enlargements, and photocopies of exhibits - C.C.P., § 1033.5(a)(13) provides that costs for “[m]odels, the enlargements of exhibits and photocopies of exhibits, and the electronic presentation of exhibits, including costs of rental equipment and electronic formatting, may be allowed if they were reasonably helpful to aid the trier of fact.” Plaintiff claims “Trial Binders & Motion Lit Demonstrative evidence” totaling \$9,721.57. These costs are facially appropriate.

Defendant challenges the trial binder costs by arguing on March 9, 2026, the binders of trial exhibits for the Court, witness stand, and counsel were brought to the trial courtroom by Plaintiff's counsel, the costs of which were equally shared by the parties (totalled \$1,243.15, each paying \$621.58). Plaintiff is entitled to recover this cost. **Motion to tax denied as to \$621.58 in exhibit costs.**

Defendant also challenges the \$9,100 incurred for the enhanced and animated videos, specifically \$6,600 in animation costs and \$2,500 for enhancement of the surveillance video costs. Defendant argues the videos were not admitted into evidence and there was already a surveillance video depicting Plaintiff's fall that was admitted into evidence. Plaintiff argues the enhanced surveillance video was played repeatedly during opening and closing arguments, and during Plaintiff's expert's testimony and was admitted into evidence. The enhanced video appears to have been admitted and viewed by the trier of fact, Motion denied as to the \$2,500 enhancement video.

However, Plaintiff also argues the animated video was played during expert testimony but was not admitted into evidence. Defendant further explains that the animated video was not accurate representation of the fall and thus it could not be reasonably helpful to the jury. **Motion to tax granted as to the \$6,600 in costs for the animated video.**

Item 15 – Other - Defendant challenges the following charges under the “other” category:

Nutris Nurse Observer for two defense medical examinations (“DME”) totaling \$1,400.00 (or \$700/each). Plaintiff's counsel opted to have a third person observe the exam rather than herself. These costs are not specifically allowed nor disallowed by C.C.P., § 1033.5. However, these fees were incurred for convenience of counsel or were not reasonably necessary for the conduct of the litigation. If counsel wanted to observe the DME, she could have done so personally. Motion to tax costs pursuant to C.C.P., § 1033.5(c)(4) is **granted as to the \$1,400 in costs.**

Mileage and hotel for Nina Minassian, Esq. (\$2,042.99) and mileage and hotel for Samuel Dordulian, Esq. (\$2,422.95). The only travel expenses authorized by section 1033.5 are those to attend depositions. (C.C.P., § 1033.5, subd. (a)(3)(C).) Otherwise the court has discretion to award costs for lodging and mileage if it finds, the costs were

“reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and “reasonable in amount.” (C.C.P., § 1033.5(c).) As for mileage, “routine expenses for local travel by attorneys or other firm employees are not reasonably necessary to the conduct of litigation.” (*Ladas v. California* (1993) 19 Cal.App.4th 761, 775-776.) Furthermore, booking hotel rooms is merely convenient or beneficial, not necessary. **Accordingly, motion to tax is granted in the amount of \$4,465.94.**